



GRETCHEN WHITMER
GOVERNOR

STATE OF MICHIGAN
DEPARTMENT OF
ENVIRONMENT, GREAT LAKES, AND ENERGY
MATERIALS MANAGEMENT DIVISION



PHILLIP D. ROOS
DIRECTOR

November 19, 2024

Chris Gee, General Manager
Wexford County Landfill, LLC
990 Mackinaw Trail
Manton, Michigan 49663

Dear Chris Gee:

SUBJECT: Application for Solid Waste Disposal Area Operating License; Wexford County Landfill, LLC; Waste Data System Number 470336; License Number 9758

Staff of the Department of Environment, Great Lakes, and Energy (EGLE), Materials Management Division (MMD), has reviewed your application for a municipal solid waste landfill, known as Wexford County Landfill, LLC, located in Cedar Creek Township, Wexford County, Michigan. This review was conducted under the provisions of Part 115, Solid Waste Management, of the Natural Resources and Environmental Protection Act, 1994 PA 451, as amended.

Based upon our review of your application, your operating license is hereby granted. Enclosed is your license with operating stipulations.

Should you require further information, please contact Jim Ferritto, Cadillac District Supervisor, MMD, at 231-878-0962 or FerrittoJ@michigan.gov.

Sincerely,

Rhonda S. Oyer, Manager
Solid Waste Section
Materials Management Division
517-897-1395

Enclosure

cc: District Health Department #10 (Wexford County)
Cedar Creek Township Clerk
Jim Ferritto/John Ozoga/Jim Staley, EGLE - Cadillac
Margie Ring/Jim Arduin/Facility File, EGLE



MICHIGAN DEPARTMENT OF ENVIRONMENT, GREAT LAKES, AND ENERGY

MATERIALS MANAGEMENT DIVISION

SOLID WASTE DISPOSAL AREA LICENSE

This license is issued under the provisions of Part 115, Solid Waste Management, of the Natural Resources and Environmental Protection Act, 1994 PA 451, as amended, MCL 324.11501 et seq., and authorizes the operation of this solid waste disposal area (Facility) in the state of Michigan. This license does not obviate the need to obtain other authorizations as may be required by state law.

FACILITY NAME: Wexford County Landfill, LLC

LICENSEE/OPERATOR: Wexford County Landfill, LLC

FACILITY OWNER: Wexford County Landfill, LLC

PROPERTY OWNER: Wexford County Landfill, LLC

FACILITY TYPE(S): Municipal Solid Waste Landfill

FACILITY ID NUMBER: 470336

COUNTY: Wexford

LICENSE NUMBER: 9758

ISSUE DATE: November 19, 2024

EXPIRATION DATE: November 19, 2029

FACILITY DESCRIPTION: The Wexford County Landfill, LLC, a Municipal Solid Waste Landfill , consists of 196.4 acres located at 990 Mackinaw Trail, Manton, Michigan 49633, Cedar Creek Township, Wexford County, Michigan, as identified in Attachment A and fully described in this license.

AREA AUTHORIZED FOR DISPOSAL OF SOLID WASTE: See Attachment A, and items 2 and 3 of this license.

RESPONSIBLE PARTY: Chris Gee, General Manager
990 Mackinaw Trail
Manton, Michigan 49663
Phone Number: (231) 597-8553
Email: cgee@gflenv.com

RENEWAL OPERATING LICENSE: This License Number 9758 supersedes and replaces Solid Waste Disposal Area Operating License Number 9649 issued to the Wexford County Landfill, LLC on June 24, 2021.

This license is subject to revocation by the Director of the Michigan Department of Environment, Great Lakes, and Energy, if the Director finds that this Facility is not being constructed or operated in accordance with the approved plans, the conditions of a permit or license, Part 115, or the rules promulgated under Part 115. Failure to comply with the terms and provisions of this license may result in legal action leading to civil and/or criminal penalties pursuant to Part 115. This license shall be available through the licensee during its term and remains the property of the Director.

THIS LICENSE IS NOT TRANSFERABLE.

Rhonda S. Oyer, Manager, Solid Waste Section
Materials Management Division

Licensee: Wexford County, LLC
Facility Name: Wexford County, LLC
Operating License Number: 9758
Issue Date: November 19, 2024

The licensee shall comply with all terms of this license and the provisions of Part 115 and the administrative rules implementing Part 115 (Part 115 Rules). This license includes the license application and any attachments to this license.

1. The licensee shall operate the Facility in a manner that will prevent violations of any state or federal law.
2. The following portions of the Facility are authorized to receive solid waste by this license:

ACTIVE PORTIONS NOT AT FINAL GRADE: The area(s) identified as Cells B, C, D, E, F, G Phase I & II, H East and West, and J, with Cell acreage shown on Site Map, were authorized to receive waste by the previous license. This area's total acreage is 36.31 acres.

3. The following portions of the Facility **WILL BE** authorized to receive solid waste by this license following approval by EGLE of construction certification:

UNCONSTRUCTED AREA(S) WITH FINANCIAL ASSURANCE: The area(s) identified as Cell I, totaling 10.46 acres, are included in the calculation of financial assurance as required by Section 11523 of Part 115. This portion(s) of the Facility shall be authorized to receive waste, as part of this license, when acceptable certification is submitted to EGLE, as required by Section 11516(3) of Part 115, and determined by EGLE to be consistent with Part 115 and the Part 115 Rules. The certification shall verify that construction of this area(s) was in accordance with the Construction Permit(s) listed in Item 8 of this license, Part 115, and the Part 115 Rules.

4. The following portions of the Facility are **NOT** authorized to receive solid waste by this license:

a. **UNCONSTRUCTED AREA(S) WITHOUT FINANCIAL ASSURANCE:** The area(s) identified as West Units - Cells 1, 2, 3, 4, 5, 6, 7, 8, and 9, with Cell acreage shown on Site Map are not constructed and are not included in the calculation of financial assurance as required by Section 11523 of Part 115. This area's total acreage is 68.50 acres.

b. **CLOSED UNIT(S) OR A PORTION OF A UNIT WHERE THE FINAL COVER HAS BEEN CERTIFIED CLOSED AND ACCEPTED BY EGLE:** The following unit(s) and/or portion(s) are closed:

EXISTING UNIT(S): The unit(s) or portion(s) of unit(s) identified as Cell B, C, D&E, F, G Phase I and Phase II, and J, with Cell acreage shown on Site Map, had final closure certified on November 30, 2017. This certification was reviewed and approved by EGLE on December 14, 2017. This area's total acreage is 22.44 acres.

5. The attached map (Attachment A) shows the Facility, the area permitted for construction, monitoring points, leachate storage units, site roads, other disposal areas, and related appurtenances.
6. Issuance of this license is conditioned on the accuracy of the information submitted by the Applicant in the Application for License to Operate a Solid Waste Disposal Area (Application) received by EGLE on August 19, 2024, and any subsequent amendments. Any material or intentional inaccuracies found in that information is grounds for the revocation or modification of this license and may be grounds for enforcement action. The licensee shall inform EGLE's MMD Cadillac District Supervisor, of any inaccuracies in the information in the Application upon discovery.

Licensee: Wexford County, LLC
Facility Name: Wexford County, LLC
Operating License Number: 9758
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7. This license is issued based on EGLE's review of the Application, submitted by Wexford County Landfill, LLC, for the Wexford County Landfill, LLC, dated August 7, 2024, and revised October 29, 2024. The Application consists of the following:

- a. Application Form EQP 5507.
- b. Application fee in the amount of \$12,500.00.
- c. Certification of construction by N/A, dated NA.
- d. Waste Characterization: N/A.
- e. Restrictive Covenant:

The Wexford County Landfill, LLC restrictive covenant on 194.98 acres is on file at the Wexford County Register of Deeds recorded on June 20, 2011, as Liber 640 pages 659-664. A copy is on file with EGLE.

- f. Landfill Care Fund Agreement (LCF), established as a landfill care fund bond with a standby trust, signed by Eva Mazzaferro, VP, Treasury and Shared Services, GFL Environmental Inc. on May 2, 2024, was executed by EGLE on September 18, 2024.
- g. Financial Assurance.

- i. Financial Assurance Required:

The amount of financial assurance required for this Facility was calculated based on the calculation worksheet form EQP5507ACE entitled, "Form A, Financial Assurance Required," and is \$22,006,153.35.

The Facility has provided financial assurance totaling \$22,157,990.45, based on the requirements of Section 11523 of Part 115, consisting of a combination of the Perpetual Care Fund established under Section 11525 of Part 115, a Landfill Care Fund established under Section 11525d, and the financial capability of the Applicant as evidenced by a financial test. The financial assurance mechanisms used by the Facility are summarized below in Items ii, iii, and iv, respectively.

- ii. Financial Assurance Provided Via Bond:

The following financial assurance has been received from the Applicant to meet the amount of financial assurance required:

Surety Bond	\$22,157,990.45
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Total Amount Received: \$22,157,990.45

- iii. Financial Assurance Provided Via a Perpetual Care Fund: N/A.
 - iv. Financial Assurance Provided Via a Financial Test for a Type II Landfill: N/A.
 - v. Financial Assurance Updates Required:

For Type II landfills, the financial assurance cost estimates of closure and postclosure activities must be updated annually and the corresponding requisite amount of financial assurance must be adjusted annually for the costs of inflation. The corresponding financial assurance, as adjusted for inflation and other factors, is due one year from the date of this license, and each year thereafter.

Licensee: Wexford County, LLC
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- vi. Other Required Financial Assurance: N/A.
8. The following documents approved with Construction Permit Number(s) 4100 and 4127 issued to Wexford County DPW and Wexford County Landfill, LLC on November 17, 2008, and August 20, 2012, respectfully, are incorporated in this license by reference:
- a. 2008 Expansion Permit, Wexford County Landfill, Environmental Assessment Report, prepared by CTI and Associates, Inc. (CTI), dated May 2008.
 - b. 2008 Expansion Permit, Wexford County Landfill, Engineering Report, prepared by CTI, dated May 2008, with revisions dated October 2008.
 - c. 2008 Expansion Permit, Wexford County Landfill, Hydrogeological Report, prepared by CTI and dated May 2008.
 - d. 2008 Expansion Permit, Wexford County Landfill, Hydrogeological Monitoring Plan (HMP), prepared by CTI, dated May 2008. (See HMP revisions listed in Section 9.)
 - e. 2008 Expansion Permit, Wexford County Landfill, Engineering Plan Set, Wexford County, Michigan, prepared by CTI, and dated October 2008.
 - f. Remedial Action Plan (RAP) - Wexford County Landfill, prepared by CTI, dated August 6, 2007, and approved on August 9, 2007.
 - g. Limited Agreement for a Residential Remedial Action entered between EGLE and Wexford County, effective October 2007.
 - h. Wexford County Landfill, LLC, Construction Permit Application, Volumes 1 and 2, both dated April 19, 2012, and revised June 11, 2012, and July 18, 2012; Engineering Plans entitled Construction Permit application, 2012, Expansion Permit, Wexford County Landfill, LLC, dated April 2012 and revised July 17, 2012. .
9. The following additional documents, approved since the issuance of the construction permit(s) referenced in Item 8, are incorporated in this license by reference:
- a. Wexford County Landfill, LLC, Solidification Plan, dated December 29, 2011, and approved January 11, 2012.
 - b. Wexford County Landfill, LLC, Hydrogeologic Monitoring Plan, dated March 2018.
 - c. Leachate Recirculation Plan dated July 2014, and revised September 2015.
 - d. Odor Management Plan dated July 14, 2014.
 - e. Leachate Lagoon and Spray Curtain Engineering Certification and (Neptune) Operation Plan, dated October 2015.
 - f. Documentation of Waste Relocation Completion Approval dated April 21, 2016.
 - g. Revised Final Cover Slope Drain Upgrade dated July 19, 2016.
 - h. Final Cover Prescriptive Blend Soil Amendment dated November 14, 2016.
 - i. Construction Permit Upgrade, Cells G-4, H, and I, dated January 16, 2017.
 - j. Revised Prohibited Waste plans dated March 2017.
 - k. Final Cover Certification, Partial Closure of Cells B, C, D/E, F, G, and J, totaling 22.44 acres, dated November 30, 2017.
 - l. Vector Control Plan dated March 2018.
 - m. Revised Engineering Plans - Cell H, Cell G-3, and Temporary Sump, dated March 2018 and prepared and stamped by Ms. Vicki Garon, P.E., (Complete Revised Set of Landfill Engineering Plans).
 - n. Landfill Gas Management Plan dated November 2018, and approved November 21, 2018.
 - o. Part 115 Surface Emission Monitoring (SEM) Plan, dated March 28, 2024, and approved on April 30, 2024.
 - p. Landfill Gas Monitoring and Management Plan, dated March 28, 2024, and approved on April 30, 2024.
10. Consent Order/Judgment Number/Legally Enforceable Agreement: N/A.
11. The licensee shall repair any portion of the certified liner or leachate collection system that is found to be deficient or damaged during the term of this license unless determined otherwise by EGLE.
12. The licensee shall have repairs to any portion of the certified liner or leachate collection system recertified by a registered professional engineer in accordance with R 299.4921 of the Part 115 Rules and approved by EGLE before receiving waste in that portion of the certified liner or leachate

Licensee: Wexford County, LLC
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collection system. The licensee shall submit the recertification to EGLE's MMD Cadillac District Supervisor, for review and approval.

13. The licensee shall conduct hydrogeological monitoring in accordance with the approved hydrogeological monitoring plan, dated March 2018. The sampling analytical results shall be submitted to EGLE's MMD Cadillac District Office.
14. Modifications to the approved hydrogeological monitoring plan referenced in Item 13 may be approved, in writing, by EGLE's MMD Cadillac Supervisor. Proposed revisions must be submitted in a format specified by EGLE.
15. Leachate may be recirculated if a leachate recirculation plan has been approved, in writing, by EGLE's MMD Cadillac District Supervisor.
16. Modifications to approved engineering plans that constitute an upgrading, as defined in R 299.4106a(l) of the Part 115 Rules, may be approved, in writing, by EGLE's MMD Cadillac District Supervisor.
17. Requests for alternate daily cover may be approved, in writing, by EGLE's MMD Cadillac District Supervisor.
18. Leakage Control Criteria:

The active portions of the unit(s) authorized to receive waste by this license is an unmonitorable unit(s) designed with a double-liner systems that is in compliance with the provisions of R 299.4422(3) of the Part 115 Rules and that is capable of detecting and collecting leakage through the primary composite liner. The action flow rate for each unit containing a leak detection system is 5 gallons/acre/day. The response flow rate for each unit containing a leak detection system is 25 gallons/acre/day.

19. **VARIANCES:** The licensee is granted the following variance(s) from Part 115 and/or the Part 115 Rules: None.

20. **SPECIAL CONDITIONS:**

- a. The licensee shall place a compacted layer of not less than six inches of earthen material, unless an exemption is granted, of suitable cover material on all exposed solid waste by the end of each working day, as required by R 299.4429(1) of the Part 115 Rules. Suitable cover shall be either uncontaminated soil or an alternate cover approved by the MMD, listed in Item i, below. Alternate cover shall be restricted as indicated in Item ii and applied as per the approved operational plan submitted by the licensee.

- i. Approved alternate cover shall be any of the following:

<u>Product/Waste Material</u>	<u>Source</u>	<u>Monthly Volume</u>
Foundry Sand	Cadillac Casing, Inc.	Unlimited
Ash	Various	250 tons
Auto Fluff	Various	1,650 tons
Contaminated Soils	Various	500 tons
Solidified Drilling Muds	Various	300 tons
Norm Solids	Various	400 tons
Solidified Solids	Various	450 tons
Wood Chips	Various	200 tons
Screened Compost Rejects	Various	200 tons
Catch Basin Solids	Various	200 tons
Oil & Gas Solids	Various	200 tons

ii. The above materials are approved for daily cover when used in the following manner:

- (1) The licensee shall use the material as daily cover only. The material cannot be used for road building or fill in other areas of the Facility's operation.
- (2) The licensee shall maintain copies of the testing performed on Class B and Class C materials in the facility operating record.
- (3) The licensee shall only stockpile material in a secure manner within the active cell.
- (4) This approval does not preclude the licensee from disposing of the material as waste in the active fill area instead of using the material as daily cover.
- (5) This approval shall immediately become void upon documentation by EGLE that the alternative cover is not being used in accordance with listed conditions, that the alternative cover is not providing the necessary protection, that the material no longer meets the alternative daily cover guidelines, or that the process producing the waste material has changed.
- (6) If the material does not meet the guidelines from Appendix 2 of Policy and Procedure OWMRP-115-10, for nonvolatiles, the licensee shall ensure that fugitive dust emissions from this material do not occur. Acceptable methods to ensure fugitive emissions do not occur are:
 - (a) Implement a schedule to wet down material; or
 - (b) Cover the material with a tarp; or
 - (c) Apply an approved foam or other appropriate commercial dust control product.
- (7) This approval to use alternative cover shall expire upon expiration of this operating license.

b. Additional authorizations and/or reporting obligations may be required by Part 115. If material recovery, composting, waste diversion, electronics recycling, scrap tire collection, or solid waste processing/transfer activities are also being conducted at this Facility, please contact your MMD District Office to evaluate the need for additional authorizations and/or reporting.

c. On October 9, 2007, EGLE approved a "Limited Residential Remedial Action Plan"(RAP) for the Wexford County Landfill. On October 5, 2007, EGLE executed an "AGREEMENT FOR A LIMITED RESIDENTIAL REMEDIAL ACTION" to specify the agreed upon conditions for approval of the RAP, EGLE Reference No. RAP-LANDUSE-WHMD-2007-A (Agreement).

The Agreement specifies that the Wexford County DPW retain responsibilities under the Agreement to implement the RAP, regardless of transfer of ownership. R 299.4445(1)(b) of the Part 115 Rules requires, among other things, that the owner and operator of a solid waste disposal area (Wexford County Landfill, LLC) shall implement the approved RAP. Wexford County Landfill, LLC, and the DPW have entered a contractual arrangement to ensure implementation of the RAP and financial assurance for such. This arrangement does not limit EGLE's ability to take any appropriate action under the law and the Agreement to protect public health, safety, welfare, or the environment; or to prevent, abate, or minimize a release or threatened release of hazardous substance, pollutants, or contaminants on, at, or from the Facility. Wexford County Landfill, LLC shall provide access as necessary to the DPW and their contractors to implement the approved RAP.

21. **TERM:** This license shall remain in effect until its expiration date, unless revoked or continued in effect, as provided by, the Administrative Procedures Act, 1969 PA 306, as amended, or unless superseded by the issuance of a subsequent license.

Licensee: Wexford County, LLC
Facility Name: Wexford County, LLC
Operating License Number: 9758
Issue Date: November 19, 2024

END OF LICENSE

If you need this information in an alternate format, contact EGLE-Accessibility@Michigan.gov or call 800-662-9278.

EGLE does not discriminate on the basis of race, sex, religion, age, national origin, color, marital status, disability, political beliefs, height, weight, genetic information, or sexual orientation in the administration of any of its programs or activities, and prohibits intimidation and retaliation, as required by applicable laws and regulations. Questions or concerns should be directed to the Nondiscrimination Compliance Coordinator at EGLE-NondiscriminationCC@Michigan.gov or 517 249-0906.

This form and its contents are subject to the Freedom of Information Act and may be released to the public.

Attachment A



LEGEND

- PROPERTY BOUNDARY
- PERMITTED SOLID WASTE BOUNDARY
- PHASE DELINEATION
- FINAL COVER LIMITS
- EXISTING 2' CONTOUR
- EXISTING 10' CONTOUR
- FINAL COVER AREA

NOTES:

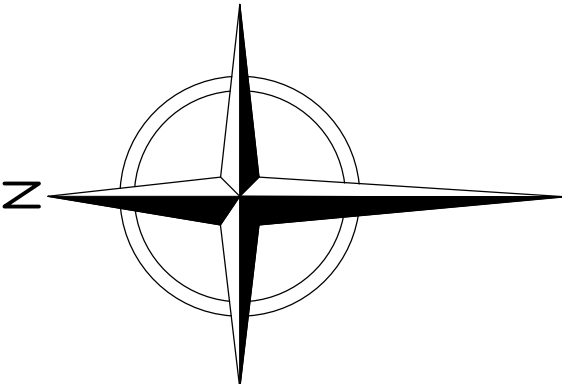
- SEE SHEET NO. 01 OF THIS DRAWING PACKAGE FOR THE LANDFILL COORDINATE SYSTEM AND VERTICAL DATUM INFORMATION.
- SURVEY PERFORMED BY COOPER AERIAL SURVEYS DATED APRIL 7TH, 2024.

ACTIVE AREAS NOT AT FINAL GRADE		46.77 ACRES
CELL B	2.47 ACRES	
D&E	3.39	
G-1	0.87	
G-2	4.53	
G-3	6.7	
G-3 (2)	2.83	
H-EAST	5.34	
H-WEST	6.44	
I	10.46	
C	2.1	
F	0.53	
J	1.11	

PARTIALLY CLOSED AREAS		22.44 ACRES
CELL B	2.33 ACRES	
D&E	4.82	
G-1	4.43	
G-2	0.07	
C	1.9	
F	5.77	
J	3.12	

UNCONSTRUCTED W/O FINANCIAL ASSURANCE		68.5 ACRES
CELL	1	7.6 ACRES
	2	8.8
	3	12.6
	4	7.4
	5	7.4
	6	7.5
	7	5.3
	8	4.5
	9	7.4

TOTAL ACRES	137.71 ACRES
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0 200 400
SCALE IN FEET

REV	DATE	DESCRIPTION	DWN BY	DES BY	CHK BY	APP BY
1	08/01/2024	DATE OF ISSUE	JTH	SRC	JEB	
2	08/01/2024	DESIGNED BY	JTH	APPROVED BY	JEB	



ALL PROFESSIONAL ENGINEERING WORK IS ASSIGNED BY FULLY LICENSED PROFESSIONAL ENGINEERS UNDER THE APPROPRIATE STATE REGISTERED PROFESSIONAL ENTITY.

GREEN FOR LIFE ENVIRONMENTAL, INC.
WEXFORD COUNTY LANDFILL
WEXFORD COUNTY, MICHIGAN

2024 ANNUAL CAPACITY EVALUATION
2024 AERIAL TOPOGRAPHY

SHEET NO.

03

PROJECT NO.
209-4241579

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